



2026:AHC:172708-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 27416 of 2026

Chanakya Gupta

.....Petitioner(s)

Versus

State Of Uttar Pradesh And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Ayush Mehrotra, Kriti Gupta
Counsel for Respondent(s)	:	C.S.C., Usha Kiran

Court No. - 29

**HON'BLE ARINDAM SINHA, J.
HON'BLE SATYA VEER SINGH, J.**

1. Ms. Kriti Gupta, learned advocate appears on behalf of petitioner and submits, under challenge is order dated 6th November, 2025 reiterating retrospective charges for consumption of electricity in respect of bills earlier raised and paid. She submits, when the charges were sought to be recovered, her client moved co-ordinate Bench and there was order dated 13th August, 2025. Paragraphs 4 to 7 from said order are reproduced below.

"4. We are also of the view that the petitioner should be directed to file an objection to the impugned notice and upon filing of the said objection within a period of three weeks, the Executive Engineer is directed to grant a proper opportunity of hearing to the petitioner and thereafter pass a reasoned order in accordance with law within a period of six weeks from the date of receipt of the objection.

5. Mr. Bidhan Chandra Rai, learned counsel appearing for the petitioner submits that the authority has relied upon an M.R.I. Report that has not been supplied to the petitioner.

6. The authority concerned is directed to supply the said M.R.I. Report to the petitioner within a period of five days from the date.

7. We make it clear that no coercive measures shall be taken against the petitioner till the reasoned order is passed by the Executive Engineer."

(emphasis supplied)

She submits, her client gave detailed objection dated 16th September, 2025. Without dealing with it, impugned order was made. She seeks interference.

2. Mr. Shubhranshu Shekhar, learned advocate, Additional Chief Standing Counsel appears for State. Mrs. Usha Kiran, learned advocate appears for respondent nos. 2 to 4 (the supply company) and submits, the MRI report was made available. Petitioner was heard and thereupon impugned order made. There should not be interference.

3. In the objection several points were taken, of which few are reproduced below.

"3.....

c. Arbitrary retrospective change: On 25.06.2025, a fresh sealing certificate was allegedly prepared suggesting OMF=200, without following Clause 5.6 of the U.P. Electricity Supply Code, 2005. No check meter was installed, nor was MRI analysis properly supplied.

d. No basis for CT Ratio of 1000/5: There is no finding in any document to show that the CT ration of the meter is 1000/5, which alone could have justified applying an OMF of 200. On the contrary, the sealing certificate dated 09.05.2023 clearly records CT ratio as 10/5 and OMF=2. Hence, the very foundation of the alleged enhancement of OMF is baseless and contrary to records. No where in the sealing Certificate the CT ratio in 1000/5 making it a MF of 200."

The supply company was obliged to comply with direction in paragraph 7 in said order dated 13th August, 2025 as petitioner had put in detailed objection. Impugned order suffers from lack of reasons. It is set aside and quashed.

4. Mrs. Kiran submits, petitioner has stopped paying regular electricity bills. Ms. Gupta submits, till recently the consumption bills were paid and in addition some amounts on the claimed arrears. Petitioner is directed to pay outstanding of arrears on current bills by 24th August, 2026.

Petitioner will communicate certified copy of this order along with due discharge obtained from payment of the arrears on current bills to respondent no.3 (the Executive Engineer). Said respondent will pass fresh order in respect of the retrospective claim.

5. The writ petition is disposed of.

(Arindam Sinha,J.)

(Satya Veer Singh,J.)

August 17, 2026
Mohini